

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 27, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 26CV00920

LUX OPTICS INC. v. DE WITH

DEFENDANT’S DEMURRER

The demurrer is overruled. Defendant is ordered to file an answer no later than August 14, 2026.

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at p. 747.)

Plaintiff Lux Optics is a closely held corporation with two shareholders, Benjamin Sandofsky and defendant Sebastiaan de With. Beginning in 2019, they operated a small creative studio engaged in the development and distribution of mobile photography and video applications for iOS devices. In 2025, Mr. Sandofsky discovered many instances of improper charges by defendant on company accounts, which eventually led to an investigation by a third

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party and the discovery of defendant's alleged lies about other improper charges and breaches of duty. Defendant was removed as a director in late 2025. (Complaint ¶¶ 9-55.)

Plaintiff's complaint, taken as true, alleges a years-long fraudulent scheme involving hundreds of improper transactions by defendant and his repeated affirmative misrepresentations, failure to disclose material facts he had a fiduciary duty to disclose, and use of those misrepresentations and nondisclosures to induce plaintiff to pay his personal expenses and fund personal endeavors. (Complaint at ¶¶ 22-54, 77-87.) Plaintiff alleges defendant induced Lux Optics to lease and fund an expensive rental space by representing that it was needed for legitimate company purposes while simultaneously failing to disclose that he would use, and did use, the premises primarily for personal purposes and an undisclosed consulting business. (Complaint ¶¶ 31-36.) The complaint alleges that defendant owed fiduciary duties "[b]y virtue of his position as a key executive employee and the trust placed in him," which included significant authority over company operations, expenditures, and business activities, and that defendant breached those duties. (Complaint ¶¶ 89-91.) Plaintiff alleges conversion by defendant's failure to return more than \$10,000 in company-owned equipment purchased with company funds, failed to return the company's Apple Design Award, retained the company's \$4,000 security deposit refund, delayed the return of company devices, returned certain devices only after they had been wiped, reset, altered, or impaired, and failed to timely relinquish administrative control over the company's social media accounts and domain. (Complaint ¶¶ 57-68, 107-113.) Finally, plaintiff pleads and seeks restitution and disgorgement of benefits defendant allegedly wrongfully retained, including company funds, use of company-paid premises and infrastructure, and company property and digital assets. (Complaint ¶¶ 124-127.)

Plaintiff made claims for (1) Fraud (Intentional Misrepresentation and Concealment); (2) Breach of Fiduciary Duty under California law; (3) Breach of Fiduciary Duty under Delaware law; (4) Conversion; (5) Trespass to Chattels; (6) Restitution (Unjust Enrichment), pled in the alternative; (7) Violation of Penal Code section 502 [computer fraud]; (8) Misappropriation of Trade Secrets under the California Uniform Trade Secrets Act ("CUTSA"); and (9) Declaratory Relief.

Defendant demurs to the first, second, fourth, sixth, seventh, eighth, and ninth causes of action on the grounds they fail to state sufficient facts to support any cause of action. Based on the Court's review of the complaint, when read liberally and in context, plaintiff's allegations are sufficient to support its claims for fraud, breach of fiduciary duty, conversion, restitution, computer fraud, misappropriation of trade secrets, and declaratory relief, and the demurrer is therefore overruled.

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No. 25CV01515

HERNANDEZ v. AMERICAN HONDA MOTOR CO., INC.

PLAINTIFF'S MOTION FOR ATTORNEYS' FEES AND COSTS

The motion is granted. The court awards \$8,128.26 in attorneys' fees and costs to plaintiff Alan M. Hernandez.

I. BACKGROUND AND MOTION

This is a lemon law case regarding plaintiff's allegedly defective 2025 Honda HR-V. Plaintiff contends the vehicle's electrical and braking systems are defective. A notice of conditional settlement was filed on April 2, 2026.

Plaintiff, as prevailing party, seeks attorneys' fees and costs in the amount of \$9,703.26 pursuant to Civil Code section 1794, subdivision (d) ["If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."]

II. LEGAL STANDARDS

The determination of a reasonable amount of attorney fees is within the sound discretion of trial courts. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Akins v. Enterprise Rent-A-Car Co.* (2000) 79 Cal.App.4th 1127, 1134.) An experienced trial judge is in a position to assess the value of the professional services rendered in his or her court. (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 255, disapproved on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260, 270.) Courts must rely on testimony from counsel based on professional experience and apply hourly rates that are appropriate in the region. (*Tukes v. Richard* (2022) 81 Cal.App.5th 1, 18; *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702.)

In ruling on this motion, the trial court must first determine a touchstone or "lodestar" figure based on a careful compilation of the time spent and reasonable hourly compensation for each attorney involved in the presentation of the case. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48 (*Serrano III*)). That figure may then be increased or reduced by the application of a "multiplier" after the trial court has considered other factors concerning the lawsuit. (*Press v. Lucky Stores, Inc.* (1983) 34 Cal.3d 311, 322.)

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Trial courts are not required to adopt the rate counsel opines as the “market rate” for services. (*Ibid.*)

Factors courts apply in reviewing fee requests:

- “In determining what constitutes a reasonable attorney fee when a contract or statute provides for such an award, courts should consider the nature of the litigation, its difficulty, the amount involved, and the skill required and success of the attorney’s efforts, his or her learning, age and experience in the particular type of work demanded, the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed.” (*Contractors Labor Pool, Inc. v. Westway Contractors, Inc.* (1997) 53 Cal.App.4th 152, 168.)
- The degree of success in obtaining litigation objectives is a factor that judges may, but are not required to, consider in determining the award of reasonable attorney fees. (*Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1397; *Meister v. Regents of Univ. of Cal.* (1998) 67 Cal.App.4th 437, 454.)
- In supporting attorneys’ fees motions, ““there is no required level of detail that counsel must achieve.”” (*Syers Properties III, Inc., supra*, 226 Cal.App.4th at 699.) It is not necessary to provide detailed billing timesheets to support an award of attorney fees under the lodestar method.... Declarations of counsel setting forth the reasonable hourly rate, the number of hours worked, and the tasks performed are sufficient.” (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1324.)
- “[A]ttorneys’ fees need not be reduced for work on unsuccessful claims if the claims ‘are so intertwined that it would be impracticable, if not impossible, to separate the attorney’s time into compensable and noncompensable units.’” (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 342.)
- Records amounting to vague block billing are not objectionable per se, but are a risky choice, because moving parties have the burden to support fees requests, and the strategy may lead to trial courts’ discretionary curtailing of the number of compensable hours. (*Christian Research Inst. v. Alnor* (2008) 165 Cal.App.4th 1315, 1325.)

Serrano III set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: (1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award, both from the

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point of view of eventual victory on the merits and the point of view of establishing eligibility for an award; (4) the fact that an award against the state would ultimately fall upon the taxpayers; (5) the fact that the attorneys in question received public and charitable funding for the purpose of bringing law suits of the character here involved; and (6) the fact that the monies awarded would inure not to the benefit of the attorneys involved but the organizations by which they are employed. (*Press v. Lucky Stores, Inc.*, *supra*, 34 Cal.3d at 322, fn. 12.) “[T]he trial court is not required to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.)

II. DISCUSSION

Plaintiff seeks fees of \$9,703.26 which includes \$2,625.00 of anticipated fees for preparing a reply brief and appearing at the hearing on this motion. The attorney rates requested are \$425.00, \$440.00, \$525.00, \$560.00, and \$595.00; paralegal rates are \$215.00 per hour. Plaintiff’s legal team’s experience per attorney by years of practice: Anvar, 9; Cohen, 13; Shumake, 7; Sura, 6; Elian, less than 1; Walker, 7. Plaintiff’s lodestar for work prior to the reply for this motion is \$6,395.50 (15.4 hours). (See Declaration of Shumake.) Plaintiff does not seek any multiplier.

Defendant seeks a modest adjustment to the request by reducing for apparent attorney duplication (\$420.00) and lowering anticipated reply fees to \$1,500.00. Defendant asks that the total award be reduced to \$8,158.26.

The Court finds the hourly rates are reasonable for this type of action and for the region. The Court has reviewed plaintiff’s counsels’ billing entries and finds them to be reasonable and necessarily incurred. The Court awards two hours for the preparation of the reply and hearing appearance at \$525.00/hour.

Therefore, the Court approves a total attorneys’ fee award of \$8,128.26 (\$682.76 in costs, \$1,050.00 for reply and hearing, and \$6,395.50 for prevailing party fees).